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Case Number: 25STCP01098 Hearing Date: July 9, 2026 Dept: 224

Board of Trustees of the Southern California Plastering Institute v. Streamline Finishes et al.,

TENTATIVE RULING

As the Petition was timely made, and the requirements of Code of Civil Procedure section 1285.4 have been satisfied, the Petition to Confirm Arbitration Award is GRANTED.

The Court hereby CONFIRMS the Award and ENTERS JUDGMENT according to the terms of the Award as set forth above, and awards Petitioner attorneys' fees in the amount of \$2,381.00 and costs in the amount of \$996.17.

Petition is to file and serve a proposed judgment no later than 5 days from the entry of this order. The Court sets a non-appearance case review for signing of the judgment for July 17, 2026 at 4:00 p.m.

Introduction

On March 26, 2025, Petitioner Narin Board of Trustees of the Southern California Plastering Institute filed the Petition to Confirm Arbitration Award in this action against Respondent Streamline Finishes, Inc.

No opposition has been filed.

Legal Standard

California's law and public policy favors arbitration as "a speedy and relatively inexpensive means of dispute resolution." (Moncharsh v. Heily & Blase (1992) 3 Cal.4th 1, 9 (Moncharsh), internal quotations omitted.) By enacting the California Arbitration Act (CAA), which is codified in the Code of Civil Procedure (Code Civ. Proc., §§ 1280-1294.2), the Legislature expressed "its strong support for private arbitration and the finality of arbitral awards in [the CAA]." (Moncharsh, supra, 3 Cal.4th at p. 32.) "To support this policy and encourage parties to settle their disputes through arbitration, it is essential that arbitration judgments be both binding and final. Thus, as a general rule, courts will indulge every reasonable intentment to give effect to arbitration proceedings." (A.M. Classic Const., Inc. v. Tri-Build Development Co. (1999) 70 Cal.App.4th 1470, 1477-1478.)

"Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award." (Code Civ. Proc., §1285.) The petition must "(a) [s]et forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement. (b) Set forth the names of the arbitrators. [and] (c) Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any." (Code Civ. Proc., § 1285.4.) The petition must also "name as respondents all parties to the arbitration and may name as respondents any other persons bound by the arbitration award." (Code Civ. Proc., § 1285.) A petition to confirm an award must be served and filed within four years after the date the petitioner was served with a signed copy of the award. (Code Civ. Proc., § 1288.)

"A response to a petition under this chapter may request the court to dismiss the petition or to confirm, correct or vacate the award." (Code Civ. Proc., § 1285.2.)

If a petition or response to an arbitration award is duly served and filed, the court shall confirm the award as made, unless the court corrects the award and confirms it as corrected, vacates the award, or dismisses the proceeding. (Code Civ. Proc., § 1286.) Moreover, a court may not vacate or correct an award unless a petition or response requesting that the award be vacated or corrected has been filed. (Code Civ. Proc. §§ 1286.4, 1286.8.) "A petition to vacate an award or to correct an

award shall be served and filed not later than 100 days after the date of the service of a signed copy of the award on the petitioner." (Code Civ. Proc., § 1288.)

The court may vacate an arbitration award only on the grounds set forth in Code of Civil Procedure section 1286.2. (Moncharsh, supra, 3 Cal.4th at pp. 12-13.) Section 1286.2 provides that the court shall vacate the award if it determines any of the following:

- (1) The award was procured by corruption, fraud or other undue means.
- (2) There was corruption in any of the arbitrators.
- (3) The rights of the party were substantially prejudiced by misconduct of a neutral arbitrator.
- (4) The arbitrators exceeded their powers and the award cannot be corrected without affecting the merits of the decision upon the controversy submitted.
- (5) The rights of the party were substantially prejudiced by the refusal of the arbitrators to postpone the hearing upon sufficient cause being shown therefor or by the refusal of the arbitrators to hear evidence material to the controversy or by other conduct of the arbitrators contrary to the provisions of this title.
- (6) An arbitrator making the award either: (A) failed to disclose within the time required for disclosure a ground for disqualification of which the arbitrator was then aware; or (B) was subject to disqualification upon grounds specified in Section 1281.91 but failed upon receipt of timely demand to disqualify himself or herself as required by that provision. However, this subdivision does not apply to arbitration proceedings conducted under a collective bargaining agreement between employers and employees or between their respective representatives.

"The scope of judicial review of arbitration awards is extremely narrow. Courts may not review the merits of the controversy, the sufficiency of the evidence supporting the award, or the validity of the arbitrator's reasoning..... Indeed, with limited exceptions, 'an arbitrator's decision is not generally reviewable for errors of fact or law, whether or not such error appears on the face of the award and causes substantial injustice to the parties.'" (Dept. of Personnel Administration v. California Correctional Peace Officers Ass'n (2007) 152 Cal.App.4th 1193, 1200.) (Accord California School Employees Assn. v. Bonita Unif. School Dist. (2008) 163 Cal.App.4th 387, 406-07.)

Discussion

Here, the Award was issued on January 22, 2025, by the Joint Conference Board ("JCB") pursuant to Article XII of the collective bargaining agreement between the Western Wall & Ceiling Contractors Association, Inc., California Plastering Conference and Operative Plasterers' and Cement Masons' International Association, AFL-CIO, Local Union 200. The JCB rendered its decision on October 23, 2024, and issued the Award on January 22, 2025. (Levy Decl., ¶ 2; Petition, Exh. 3.) A signed copy of the Award was served on Streamline on January 27, 2025. (Petition, Exh. 4.) The Petition was filed on March 26, 2025. The Petition was thus filed more than 10 days, but less than four years, after the Award was served, and is therefore timely.

Further, the Petition complies with the Code of Civil Procedure requirements. A copy of the Agreement to Arbitrate is attached to the Petition. The Petition identifies the arbitral body, the Joint Conference Board, which issued the Award. (Petition, Exh. 3.) At the hearing, the JCB was comprised of Robert Miller, Steve Bond, Albert Carrillo, Christian Betancourt, Greg Malachowski, Esequiel Mendez, Carlos Ponce, Manuel Alvarado, Michael Morales, Eddie Yarc, and Brad Rutherford. (Petition, Exh. 3.) The Petition attaches a copy of the Award. (Petition, Exh. 3.) The Petition names as Respondent the sole party to the arbitration, Streamline Finishes, Inc.

The Award found Streamline in violation for failing to make its books and records available for audit for the period of March 2023 through December 31, 2023, and orders Streamline to submit various records, as specified in the Award, for that period to Berry & Co., auditors for SCPI, and to fully comply within ten days of service. The Award further provides that if "Streamline fails to comply and it is necessary to enforce this decision, Streamline shall pay all amounts then owed to SCPI, including all enforcement costs, audit costs, court costs and attorneys' fees incurred by SCPI." (Petition, Exh. 3.)

Respondents have not filed an opposite ion to the Petition, or any petition or motion to vacate or correct the Award.

Fees and Costs

The Award expressly authorizes an award of enforcement costs, audit costs, court costs, and attorneys' fees upon Streamline's failure to comply and the necessity of enforcement. Streamline has not complied, and enforcement through this proceeding was necessary. (Levy Decl., ¶¶ 2-3; Petition, Exh. 3.) The Declaration of Harrison A. Levy sets forth a blended rate of \$295.00 per hour for attorney time

and \$115.00 per hour for paralegal time; 4.2 attorney hours (\$1,239.00) and 4.8 paralegal hours (\$552.00) incurred through July 9, 2025, plus 2.0 anticipated attorney hours for the hearing, for total fees of \$2,381.00. (Levy Decl., ¶¶ 4-5; Exh. 1.)

The Declaration further establishes costs of \$996.17, consisting of \$500.95 to file the Verified Petition, \$21.40 in filing fees, \$300.12 in service fees, \$88.45 to file this Motion, and \$85.25 in service-of-process fees. (Levy Decl., ¶ 6; Exh. 1.)

The fees and costs sought are authorized by the Award, supported by the record, and reasonable.

Conclusion

As the Petition was timely made, and the requirements of Code of Civil Procedure section 1285.4 have been satisfied, the Petition to Confirm Arbitration Award is GRANTED.

The Court hereby CONFIRMS the Award and ENTERS JUDGMENT according to the terms of the Award as set forth above, and awards Petitioner attorneys' fees in the amount of \$2,381.00 and costs in the amount of \$996.17.

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Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.